

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**RESPONSE TO COMPLAINANT’S REQUEST FOR “EXPEDITED
CONSIDERATION” and “IMMEDIATE” RELIEF
IN CONNECTION WITH COMPLAINANT’S
MOTION TO COMPEL DISCOVERY, AND FOR SANCTIONS**

Respondents MSC Mediterranean Shipping Company S.A., Zim Integrated Shipping Services, COSCO Shipping Lines Co Ltd. and Wan Hai Lines Ltd. (collectively, “Respondents”), through counsel, submit this interim response to Complainant’s September 7 motion to compel discovery from Respondents, and for sanctions (the “Motion”); specifically herein responding to the Complainant’s request for “expedited consideration” and request for immediate relief. As explained below, there is no need for the Presiding Officer to consider the Motion on an expedited basis.

Counsel for Respondents notified counsel for Complainant on Friday, September 3, that Respondents would not be able to complete production of the remaining documents from four ocean carrier Respondents on that date, raised concerns about the non-production of critical categories of documents by IMCC and its subpoenaed non-party members, and requested a conference to discuss these issues. As to Respondents' productions, each ocean carrier has previously produced responsive documents in this proceeding, and at no time did any Respondent refuse to produce responsive documents. On Monday, September 6, counsel for Complainant demanded immediate production of the documents and a meet and confer at 10 a.m. on Tuesday, September 7. At the meet and confer, counsel for Complainant asked if (1) documents would be produced immediately; and (2) if Respondents objected to a request for sanctions. When counsel for Complainants was told immediate production was not possible, meaningful dialogue ceased. Counsel for Complainant did not ask when the remaining discovery could be completed and counsel declined Respondent's offer for Respondents to prepare a motion to the Presiding Officer explaining the issues and requesting adjustment of the discovery schedule. Counsel for Complainant was not willing to discuss a cooperative approach to resolving the issues relating to production raised by Respondents and refused to discuss similar issues that Respondents have with non-production by IMCC-member motor carriers that were subpoenaed by Respondents. Less than four hours following the "meet and confer," the Motion was filed.

First and foremost, Respondents will provide responsive documents and so notified IMCC's counsel in their September 3, 2021 email and during the "meet and confer" conference call. Respondents have never declined to produce documents or indicated that they would not. For a variety of reasons which will be discussed in more detail in their response to IMCC's

motion, which is due on September 14, 2021, the remaining four Respondents who are the subject of IMCC's motion have had difficulty in providing documents to counsel for review and production. The data files containing responsive documents are now or presently will be in possession of counsel and will be reviewed and produced as quickly as possible. Contrary to Complainant's assertion, Respondents do not have a cavalier attitude with respect to the scheduling order in this proceeding. It is simply the case that Respondents need some additional time to complete the production of document discovery. Respondents were prepared to discuss schedule adjustments with Complainant and attempted to do so, but Complainant refused to engage in that discussion during the "meet and confer" held yesterday morning.¹

Second, while Complainants have forged ahead with its instant Motion—premised for the most part on alleged prejudice from having to review discovery close to the start of the two-month deposition window—Complainants are actively downplaying serious concerns that Respondents have raised about the production of Complainant and its third-party members, all of whom are represented by counsel for Complainant. Several motor carriers subpoenaed by Respondents have produced no documents. Others have produced relatively few documents, and those that have are missing critical documents which counsel committed to provide.² Still others have produced tens of thousands of documents, some in excess of 100,000 pages, large portions of which appear to be non-responsive. Finally, on August 20 the subpoenaed third parties represented by counsel for Complainants produced over 700,000 pages of documents, and an

¹ Respondent's substantive response to the Motion will address Complaint's claim concerning its obligation to meet and confer in good faith.

² The alleged lack of a detailed deficiency letter concerning the missing trucker chassis invoices is no defense to Complainant's failure to produce the documents, nor its refusal to address Respondent's concerns during the meet and confer call. See Golden Decl. at 11, Motion at 3, fn 3.

additional 1GB of data on September 3. Complainant's alleged emergency rings hollow in light of their own conduct.

Respondents intended to try and resolve the foregoing issues directly with counsel for Complainant and its members and, on September 3, requested a conference call to discuss them. Had counsel for Complainants been willing to engage in meaningful discussions, the Motion would not have been necessary. Nor is the requested expedited relief appropriate or necessary. Further, it is important that the Presiding Officer understand the current state of discovery disputes in this proceeding. Notwithstanding Complainant's overzealous Motion, there are actual substantive discovery issues that Respondents had hoped to address cooperatively, but that ultimately Respondents may need to move to compel.

Respondents will respond more fully and formally to the issues raised and the remaining relief requested in the Motion—including Complainant's motion for sanctions—on the date their opposition is due, pursuant to the Rules. In the interim, Complainant's request for interim/expedited/immediate relief should be denied.

Respectfully submitted,

Dated: September 8, 2021

/s/ Christopher Raleigh

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CERTIFICATE OF SERVICE

I certify that, on September 8, 2021, a true and current copy of the foregoing Response to Complainant's Request for "Expedited Consideration" and "Immediate" Relief in Connection with Complainant's Motion to Compel Discovery, and for Sanctions was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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